

M/s Procapitus Business Park Pvt. Ltd. v. Uttar Pradesh Power Corporation Ltd. & 4 Others

Allahabad High Court · Division Bench · 15 April 2024 · 2024:AHC:65734-DB · WRIT - C No. - 12177 of 2024 · **Writ disposed; petitioner to complete 4.4 formalities; licensee to decide in two weeks**

HEADNOTE

Where a lessee's supply is disconnected at the owner's request and a pending application for a connection in the lessee's own name lacks the indemnity bond in Annexure 4.2 under clause 4.4 of the U.P. Electricity Supply Code, 2005, the writ court will not mandamus restoration or release. The occupier is given liberty to complete the Code formalities; the licensee must then take an appropriate decision in accordance with law within two weeks, after hearing all concerned including the lessor. A later modification deleted a recital that the premises had been sub-let, but left the licensee free to examine all aspects of the application.

FACTUAL SUMMARY

M/s Procapitus Business Park Pvt. Ltd., lessee of premises owned by respondent no. 5, sought mandamus to restore electricity (Account No. 1463168997, standing in the owner's name) and to decide its representation dated 7 April 2024. The lease provided that the lessor would apply for the connection but it would stand in the lessee's name. After a dispute, the lessor on 2 April 2024 asked U.P. Power Corporation Ltd. to disconnect supply, and the Department did so. The petitioner applied on 8 April 2024 for a connection in its own name; that application was still pending. Counsel for the Department said the indemnity bond in Annexure 4.2 under clause 4.4 of the U.P. Electricity Supply Code, 2005, had not been furnished. The 15 April 2024 order recorded that the petitioner had further sub-let the premises; on 2 August 2024 the Court deleted that recital after counsel said there had been no sub-letting.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

QUESTION

Can a lessee obtain mandamus for restoration or a new connection when the clause 4.4 indemnity bond in Annexure 4.2 has not been furnished?

HOLDING

No. The licensee having pointed out that the indemnity bond in Annexure 4.2 under clause 4.4 had not been submitted, the Court disposed of the writ with liberty to complete all legal formalities. As soon as those formalities are completed, the Department is to take an appropriate decision in accordance with law within two weeks, after hearing all concerned including the lessor. A modification dated 2 August 2024 deleted a recital of sub-letting but left the Department free to examine all aspects of the application for a connection in the petitioner's name. ¶ 5-9

FLAG Annexure 4.2 is cited as the indemnity-bond form under clause 4.4. Correction Application No. 2 of 2024 was rejected on 23.04.2024; Modification Application No. 3 of 2024 was allowed on 02.08.2024 only to delete the para-7 sub-letting recital.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A lessee disconnected at the owner's instance is not given mandamus for restoration or a new connection. The occupier must complete clause 4.4 / Annexure 4.2 formalities; the licensee then decides in accordance with law after hearing the lessor. ¶ 5-8

NOT DECIDED — LAWFULNESS OF DISCONNECTION ON THE LESSOR'S 02.04.2024 LETTER

The Court recorded the disconnection and moved to the pending 08.04.2024 application; it did not rule on whether the Department could disconnect on the owner's request. ¶ 3,8

NOT DECIDED — ENTITLEMENT TO RESTORATION OR TO A NEW CONNECTION IN THE PETITIONER'S NAME

Left to the Department after completion of clause 4.4 formalities, to be decided in accordance with law after hearing all concerned. ¶ 8-9

NOT DECIDED — WHETHER THE PREMISES HAD BEEN SUB-LET AND WHETHER THE PETITIONER'S INDEMNITY BOND WOULD SUFFICE

The 15.04.2024 recital of sub-letting was deleted on 02.08.2024; the Department was left to examine all aspects of the application. ¶ 7

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.